

DV-100, RECENT ABUSE

DECLARATION OF NED M. GELHAAR

I, Ned M. Gelhaar, declare as follows:

1. I am a shareholder of Enenstein Pham & Glass, counsel for Stephen Russell. The following information is based upon my personal knowledge, and if called upon to testify thereto, I could and would do so competently. I submit this Declaration in support of Stephen G. Russell's Request for a Domestic Violence Protective Order against Tara Katelyn Walsh.

2. Our firm also represents Mr. Russell in a civil action against Ms. Walsh pending before this Court, *Russell v. Walsh*, SFSC Case No. CGC-18-570137. On January 8, 2019, my office sent Ms. Walsh's counsel in that case, Mr. Ivo Labar, a letter saying Ms. Walsh had said she intended to disclose private videotapes of Russell which she obtained as a result of their prior relationship. We explained that disclosure of these videotapes would be an invasion of privacy and cause Mr. Russell severe emotional distress. We asked that Ms. Walsh agree to a proposed Stipulated Preliminary Injunction prohibiting disclosure of the videotapes. Attached hereto as **Exhibit A** is a true and correct copy of my letter to Mr. Labar dated January 8, 2019 and the attached proposed Stipulated Preliminary Injunction.

3. On January 15, 2019, my colleague Joy Llaguno and I had a meet and confer telephone conference with Mr. Labar where he stated Walsh would not agree to the proposed Stipulated Preliminary Injunction prohibiting disclosure of the videotapes. Mr. Labar asserted that such an order would be legally inappropriate for a number of reasons, but never denied that Ms. Walsh had the videotapes in question. I have made subsequent efforts to obtain Ms. Walsh's agreement to be bound by an injunction as part of a settlement and have been unsuccessful in those efforts.

4. Neither Mr. Labar nor Ms. Walsh have ever denied that Ms. Walsh has videotapes of Mr. Russell taken during their relationship. Ms. Walsh's discovery responses in the civil action suggest that she possesses such videotapes. Specifically, on December 10, 2018, Russell served his first set of Requests for Production of Documents ("RPD") on Walsh. Russell's RPD No. 30 requested all "... photographs, videotapes, recordings, and/or reports by

1 third parties . . .” in her possession, custody or control.

2 5. On February 15, 2019, Ms. Walsh served responses to these requests. Subject
3 to objections (which we contend were waived by Walsh’s failure to serve a timely response),
4 Walsh agreed to produce responsive documents to RPD 30 (erroneously numbered 28 in
5 Walsh’s responses), thereby representing that responsive materials exist. Attached hereto as
6 **Exhibit B** is a true and correct copy of the response at issue.

7 5. I believe Ms. Walsh and/or her counsel have behaved erratically during the
8 discovery process in the civil case. For example, during meet and confer efforts relating to
9 Walsh’s responses to Mr. Russell’s Form Interrogatories, Mr. Labar agreed to give us the contact
10 information for two of the witnesses Ms. Walsh had identified in response to Form Interrogatories
11 Nos. 12.1, 15.1, and 16.2, Matan Gavish and Rosario Ladiere. Attached hereto as **Exhibit C** are
12 true and correct copies of Ms. Walsh’s Form Interrogatory responses which did not contain the
13 contact information for these witnesses and her supplemental responses representing that their
14 contact information is “unknown.” Attached hereto as **Exhibit D** is a true and correct copy of the
15 series of emails leading to Mr. Labar ostensibly giving us the contact information.

16 6. When we sent a process server to serve Mr. Gavish (Ms. Walsh’s former and
17 possibly current boyfriend) with a deposition subpoena at the address Mr. Labar gave us—
18 presumably obtained from Ms. Walsh—the process server reported that he “made contact with
19 Kirin Lewis, tenant of record and friend of the witness, Matan Gavish, and found the witness,
20 Matan Gavish moved to an undetermined address in upstate Westchester County, New York.
21 Attached hereto as **Exhibit E** is a true and correct copy of the email report from the process server.

22 7. On April 24, and 29, 2019, our office sent emails to Mr. Labar informing him
23 of the incorrect address and requesting he provide us with the correct address. In response, Mr.
24 Labar represented that “[m]y client provided the information she has. You are free to depose
25 her and cross-examine her veracity, but you are not entitled to speculate and bring a motion to
26 compel as to what you think she knows.” Attached hereto as **Exhibit F** is a true and correct
27 copy of the emails between our offices.

28 8. On a second attempt to personally serve Mr. Gavish with his deposition

1 subpoena on May 2, 2019 at the address provided by Ms. Walsh, an individual who identified
2 herself as Zoey Granieri informed the process server that “she knows Mr. Gavish, and that Mr.
3 Gavish had moved to Westchester County, New York *to live with his girlfriend, Tara Walsh.*
4 [emphasis added]” Attached hereto as **Exhibit G** is a true and correct copy of the Declaration
5 of Alvin D. Gonzalez in support of Russell’s third filing of his Motion to Compel.

6 I declare under the penalty of perjury under the laws of the State of California that the
7 foregoing is true and correct.

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9 Executed this 29th day of May 2019 in Philadelphia, Pennsylvania

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12 Ned M. Gelhaar
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